

VCU312939 Gonzalez, Israel vs. Community Services and Employment Training Inc. et al

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-14

Motion: Plaintiff's Motion for Compliance as to Request for Production of Documents, Set One and Sanctions

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Re: Gonzalez, Israel vs. Community Services and Employment Training Inc. et al

Case No.: VCU312939

Date: July 14, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Motion for Compliance as to Request for Production of Documents, Set One and Sanctions

Tentative Ruling: To grant the motion and orders compliance "...subject to a Belaire-West notice procedure and under the protection of an appropriate protective order" and to deny the motion as to any other requested relief.

Background

As an initial matter, the Court notes Defendant DYMA's filed opposition to "Plaintiff's Motion for Order Implementing Belaire-West Notice Process and Enforcing Defendant's Agreement to Produce Class Member Contact Information." The Court's file reflects only a single motion to compel compliance filed June 16, 2026.

Facts

Plaintiff filed this wage and hour class action on September 12, 2024, individually and on behalf of all similarly situated employees of Defendants Community Services and Employment Training Inc. ("CSET") and DYMA Brands Inc. ("DYMA")

On December 11, 2024, Plaintiff propounded a first set of written discovery upon Defendant consisting of Requests for Production of Documents and Special Interrogatories.

On January 16, 2025, Defendant emailed Plaintiff regarding early mediation of this matter and proposed submitting a stipulation staying the case, including discovery, pending mediation.

Plaintiff agreed to mediation, but sought an agreement as to what documents and information Defendant would produce ahead of the mediation, and the date by which those documents would be produced.

On February 21, 2025, pursuant to the stipulation of the parties, the Court ordered this matter stayed as follows:

“1. The action is stayed pending the conclusion of mediation”

Mediation was scheduled for August 27, 2025.

On February 12, 2025, Plaintiff sent Defendant DYMA a list of informal requests for documents Plaintiff sought in order to have an informed mediation. As part of the requests, Plaintiff asked that the requested documents and information be produced 60 days in advance of mediation.

On July 7, 2025, Defendant DYMA served identical objection-only responses to each special interrogatory and request for production, chiefly on the basis of Defendant's interpretation of the stay.

On August 21, 2025, Plaintiff filed a motion to compel further responses to Requests for Production, Set One (as well as to the Special Interrogatories, not at issue on this motion)

On September 16, 2025, this Court granted Plaintiff's motion and ordered Defendant DYMA to provide verified answers with fifteen (15) days of the date of the hearing and denied the requests for sanctions.

On October 1, 2025, Defendant, served further verified responses to Plaintiff's RFPs, Set One. The supplemental responses to RFP Nos. 3, 4, and 5 stated, in pertinent part:

“Defendant has produced a sampling of responsive documents in its possession, custody, or control. Defendant will produce the remaining responsive information subject to a Belaire-West notice procedure and under the protection of an appropriate protective order, as outlined in *Belaire-West Landscaping, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554. Defendant will meet and confer with Plaintiff to finalize the terms of the notice and protective order prior to disclosure.”

Plaintiff notes that on September 26, 2025, Plaintiff's counsel sent Defendant's counsel a proposed Belaire West Notice in anticipation of Defendant DYMA's forthcoming production of the class contact list, and Protective Order in anticipation of its document production.

However, Plaintiff further notes that no edits or responses to the proposed Belaire West Notice have been provided and that no Belaire West Notice is necessary as to the production of time and pay records responsive to RPF Nos. 3, 4 and 5. Plaintiff argues that production of this information can occur with redactions as to personal information of employees.

In opposition, Defendant notes a near complete settlement of this matter with a discrepancy in the settlement agreement and that Defendant requires additional time to finalize the settlement.

Authority and Analysis

"If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Code Civ. Proc., § 2031.320, subd. (a).)

There is no fixed time limit on this motion and no requirement to show any attempt to resolve the matter informally. The only required showing is that the responding party failed to comply as agreed. (*Standon Co., Inc. v. Superior Court* (1990) 225 Cal.App.3d 898, 903.)

Here, as noted by Plaintiff, Defendant agreed to produce further documents responsive to Request Nos. 3, 4 and 5 "...subject to a Belaire-West notice procedure and under the protection of an appropriate protective order."

The Court understands there has been a delay regarding any edits or agreement as to the Belaire-West notice.

However, the Court cannot adjudicate, on a motion to compel compliance, whether the documents should be produced without completion of the Belaire-West process. Nor can the Court, on a compliance motion, compel or approve a proposed Belaire-West notice.

At most, the Court may order compliance with the promised production: that it occur subject to the Belaire-West notice procedure and under the protection of an appropriate protective order.

Therefore, the Court grants the motion and orders compliance "...subject to a Belaire-West notice procedure and under the protection of an appropriate protective order."

The Court, however, will decline to award sanctions. (*Mattco Valley Forge v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437 [court's authority to deny sanctions upon mixed results].)

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.